Home Office

Workers and Temporary Workers: guidance for sponsors

Sponsor a Global Business Mobility worker

Version 04/26

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About this guidance

This document forms part of the collection 'Workers and Temporary Workers: guidance for sponsors'. It provides guidance for employers on how to sponsor a worker on the Global Business Mobility (GBM) immigration routes.

The GBM routes are for overseas businesses who need to temporarily send workers to the UK for a specific purpose that cannot be done by a settled worker. There are five GBM routes, which are:

- Senior or Specialist Worker
- Graduate Trainee
- UK Expansion Worker
- Service Supplier
- Secondment Worker

See section GBM1 for more information about these routes.

Other guidance you must read

To make sure you meet all of the relevant requirements and fulfil your sponsorship duties, you must read the following parts of the sponsor guidance, in addition to this document:

- Part 1: Apply for a licence – this contains detailed information on how to apply for a sponsor licence and how we assess applications
- Part 2: Sponsor a worker – this contains detailed information on how to sponsor Workers and Temporary Workers, including how to request and assign Certificates of Sponsorship, immigration requirements, and conditions of stay
- Part 3: Sponsor duties and compliance – this contains detailed information about your duties as a licensed sponsor and the action we can take if you fail to meet these duties
- the appendices to this guidance (Appendix A, Appendix B and Appendix D)
- the glossary – this contains definitions of terms used through the sponsor guidance (including this document)

This guidance is subject to change. If you have printed or downloaded a copy of this guidance, check the version number and date on GOV.UK to ensure you are using the most up-to-date version.

Glossary

There is a separate glossary of terms used throughout the sponsor guidance (including in this document).

The following additional terms are used in this document:

Global Business Mobility (GBM) routes

This means any of the following routes under the Immigration Rules:

- Appendix Global Business Mobility – Senior or Specialist Worker
- Appendix Global Business Mobility – Graduate Trainee
- Appendix Global Business Mobility – UK Expansion Worker
- Appendix Global Business Mobility – Service Supplier
- Appendix Global Business Mobility – Secondment Worker

When referring to the maximum cumulative period on the GBM routes, this also includes time spent in the UK on the predecessor Intra-Company routes, whether or not explicitly stated in this guidance.

Global Business Mobility (GBM) worker

This means a person who is applying for, or has been granted, entry clearance or permission to stay on any of the GBM routes; or who you are sponsoring, or intend to sponsor, on these routes.

Graduate Trainee

This means a person who is applying for, or has been granted, entry clearance or permission to stay on the Graduate Trainee route, or who you are sponsoring or intend to sponsor on the Graduate Trainee route.

Graduate Trainee route

This means the route in Appendix Global Business Mobility – Graduate Trainee to the Immigration Rules. Where the context requires it, it can also refer to its predecessor routes:

- the Intra-Company Graduate Trainee route in Appendix Intra-Company Routes to the Immigration Rules in force before 11 April 2022
- the Graduate Trainee sub-category of the Tier 2 (Intra-Company Transfer) route in Part 6A of the Immigration Rules in force before 1 December 2020

High earner

This means a worker who is sponsored as a Senior or Specialist Worker or UK Expansion Worker in a job with a gross annual salary of £73,900 or more (based on working a maximum of 48 hours per week) as confirmed by you (the sponsor).

Intra-Company routes

This means the predecessor routes of Senior or Specialist Worker or Graduate Trainee under the Immigration Rules:

- Appendix Intra-Company Routes in force before 11 April 2022

- the Tier 2 (Intra-Company Transfer) routes in Part 6A of the Immigration Rules in force before 1 December 2020.

Linked overseas business

This has the meaning given in section GBM2 of this guidance.

Maximum cumulative period

This has the meaning given in section GBM4 of this guidance.

Overseas service provider

On the Service Supplier route, this means a business (including the business of a self-employed independent professional) that is based outside the UK, has no commercial presence in the UK, and either:

- has a contract to provide services to a UK business which holds, or is applying for, a sponsor licence for the Service Supplier route; or
- is subcontracted to provide services to a UK business (sponsor) by an overseas business that meets the definition in the first bullet point above

Provisional rating

This means a sponsor on the UK Expansion Worker route which is recorded as having a rating of 'Provisional' on the register of licensed sponsors: workers on GOV.UK. See section GBM3 of this document for further information on sponsor ratings for the UK Expansion Worker route.

Secondment Worker

This means a person who is applying for, or has been granted, entry clearance or permission to stay on the Secondment Worker route, or who you are sponsoring or intend to sponsor on the Secondment Worker route.

Secondment Worker route

This means the route in Appendix Global Business Mobility – Secondment Worker to the Immigration Rules.

Senior or Specialist Worker

This means a person who is applying for, or has been granted, entry clearance or permission to stay on the Senior or Specialist Worker route, or who you are sponsoring or intend to sponsor on the Senior or Specialist Worker route.

Senior or Specialist Worker route

This means the route in Appendix Global Business Mobility – Senior or Specialist Worker to the Immigration Rules. Where the context requires it, it can also refer to its predecessor routes:

- the Intra-Company Transfer route in Appendix Intra-Company Routes to the Immigration Rules in force before 11 April 2022
- the Long-term Staff sub-category of the Tier 2 (Intra-Company Transfer) route in Part 6A of the Immigration Rules in force before 1 December 2020

Service Supplier

This means a person who is applying for, or has been granted, entry clearance or permission to stay on the Service Supplier route, or who you are sponsoring or intend to sponsor on the Service Supplier route.

Service Supplier route

This means the route in Appendix Global Business Mobility – Service Supplier to the Immigration Rules. Where the context requires it, it can also refer to its predecessor provisions for contractual service suppliers or independent professionals under:

- Appendix Temporary Work – International Agreement to the Immigration Rules in force before 11 April 2022
- Appendix T5 (Temporary Worker) International Agreement Worker to the Immigration Rules in force between 1 December 2020 and 10 October 2021 (inclusive)
- the International Agreement sub-category of the Tier 5 (Temporary Worker) route under part 6A of the Immigration Rules in force before 1 December 2020

Sponsor group

On the Senior or Specialist Worker route, or the Graduate Trainee route, this means you (the sponsor) and any business or organisation that is linked to you by common ownership or control, or by a joint venture on which the worker is sponsored to work.

On the UK Expansion Worker route, this means you (the sponsor) and any business or organisation that is linked to you by common ownership or control.

UK Expansion Worker

This means a person who is applying for, or has been granted, entry clearance or permission to stay on the UK Expansion Worker route, or who you are sponsoring or intend to sponsor on the UK Expansion Worker route.

UK Expansion Worker route

This means the route in Appendix Global Business Mobility – UK Expansion Worker to the Immigration Rules.

Contacts

If you think this guidance has factual errors or broken links, you can email the Business Helpdesk.

If you have read this guidance, and the guidance referred to above, and you still have any queries, you can call us on 0300 123 4699 or email the Business Helpdesk.

Version number and publication

Below is information on the version number of this guidance and when it was published:

- version 04/26
- published on 8 April 2026

You can view previous versions of this guidance on the National Archives website.

Changes to this guidance

This version replaces version 03/26 (published on 6 March 2026). The guidance has been updated to reflect changes to the Immigration Rules as set out in Statement of Changes HC 1691 (published on 5 March 2026). These changes apply to applications for entry clearance or permission to stay made on or after 8 April 2026, unless otherwise stated.

Details of the changes are set out below. Paragraph numbers in brackets refer to the previous version of this guidance where the number was different. Where new paragraphs have been inserted into any section, or paragraphs deleted, any subsequent paragraphs in that section have been renumbered accordingly, unless otherwise indicated

- GBM4.2, sub-heading above GBM4.19 (former GBM4.20): 'genuineness' requirement relabelled as 'genuine intention' requirement
- (former GBM4.12): empty paragraph deleted and reassigned to former GBM4.13
- GBM4.26 (former GBM4.27), GBM4.42 and GBM4.43 (former GBM4.41 and GBM4.42): updated to make provision for sponsoring Service Suppliers under the UK-India Comprehensive Economic and Trade Agreement (CETA) when this comes into force (see note below); sponsors should note there is a combined annual quota of 1,800 for certain occupations under this agreement (see new paragraphs GBM4.44 to GBM4.46)
- GBM4.27, GBM4.28: paragraph numbers assigned to previously unnumbered paragraphs
- GBM5: this section has been restructured and redrafted for clarity, and updated to reflect that the overseas work requirement for Secondment Workers has been reduced from 12 to 6 months for applications made on or after 8 April 2026
- GBM6.16: minor drafting amendment to align with the wording in the Immigration Rules

- other minor housekeeping changes

A note on the implementation of the UK-India CETA

The UK-India CETA is not in force at the date of publication of this document. Sponsors should check the 'Service Supplier visa: eligible trade agreements and sectors' page on GOV.UK for confirmation of when it comes into force.

Contents

GBM1. Sponsoring a GBM worker: overview

This section provides an overview of the Global Business Mobility routes and the sponsorship requirements you must meet.

What are the Global Business Mobility routes?

GBM1.1. The Global Business Mobility (GBM) routes allow overseas businesses to send workers to the UK for a temporary work assignment with a linked UK business that cannot be done by a settled worker. There are five GBM routes, which are described in more detail below:

- Senior or Specialist Worker
- Graduate Trainee
- UK Expansion Worker
- Service Supplier
- Secondment Worker

GBM1.2. Applicants must be aged at least 18 to qualify on these routes.

GBM1.3. The job the worker is coming to do must meet the skill-level requirement of the GBM routes. In most cases, this is level 6 on the Regulated Qualifications Framework (graduate level).

GBM1.4. The worker must already be working for you or a qualifying linked overseas business on the date they apply for entry clearance or permission. They must also normally have worked overseas for an eligible linked business for a specified minimum period (usually for at least 12 months but there are exceptions to this).

GBM1.5. GBM workers must be paid appropriately. Senior or Specialist Workers, Graduate Trainees and UK Expansion Workers must normally meet a general salary requirement and a 'going rate' requirement. For workers on the Service Supplier and Secondment Worker routes, their salary arrangements must comply with UK National Minimum Wage legislation. See sections GBM7 and GBM8 for further information.

GBM1.6. The GBM routes do not lead to settlement (indefinite leave to remain) in the UK. In most cases, the maximum period a person can stay in the UK on the GBM routes is a cumulative total of 5 years in any 6-year period. High earners and people benefiting from transitional arrangements can stay longer. Individual GBM routes have shorter grant periods.

GBM1.7. A GBM worker can be accompanied or joined by their partner and dependent children if they meet the relevant requirements for dependants.

Senior or Specialist Worker

GBM1.8. The Senior or Specialist Worker route allows you to sponsor overseas workers to undertake temporary work assignments for you in the UK, where the worker is a senior manager or specialist employee and is being assigned to you by a linked overseas business.

GBM1.9. Except where a transitional arrangement applies, Senior or Specialist Workers must be paid at least the general salary threshold (£52,500 per year), or the specified going rate for the occupation, whichever is higher. See Salary requirements for further details.

GBM1.10. A Senior or Specialist Worker can be granted permission to enter or remain in the UK for up to 5 years initially, with the option to extend up to the maximum cumulative period for workers on the GBM routes.

Graduate Trainee

GBM1.11. The Graduate Trainee route allows you to sponsor overseas workers to undertake temporary work assignments with you in the UK, where the worker is on a structured graduate training programme leading to a senior management or specialist position with a linked overseas business and is required to do a work placement in the UK as part of that programme.

GBM1.12. Graduate Trainees must be paid at least the general threshold (£27,300 per year), or the applicable going rate for the occupation code, whichever is higher. For most occupations, the applicable going rate is 70% of the full going rate but for some health and education occupations, workers must be paid the full going rate. See Salary requirements for further details.

GBM1.13. Graduate Trainees can come to the UK for up to one year at a time, up to the maximum cumulative period permitted on the GBM routes.

GBM1.14. A person you are sponsoring on the Graduate Trainee route can work in different job roles for you during their period of permission without needing to make a new application for permission, provided you notify us of any changes, each job is related to their graduate training programme, and they continue to meet the requirements of the route.

UK Expansion Worker

GBM1.15. The UK Expansion Worker route is for overseas businesses who wish to establish a branch or subsidiary in the UK. It allows eligible businesses to sponsor senior managers or specialist workers who are being assigned to the UK for a temporary period to undertake work related to the business's expansion to the UK.

GBM1.16. This route can only be used when the business has not yet begun trading in the UK. If the business is already trading in the UK, you should

apply for a licence on a different route (for example, the Senior or Specialist Worker or Skilled Worker route) instead.

GBM1.17. UK Expansion Workers must be paid at least the general salary threshold of £52,500 per year or the specified going rate for the occupation, whichever is higher. See Salary requirements for further details.

GBM1.18. A UK Expansion Worker can come to the UK for up to one year initially, with the option to extend their stay by up to a further year. Two years is the maximum continuous period a person can stay in the UK on this route. UK Expansion Workers are also subject to the maximum cumulative period for the GBM routes.

GBM1.19. You can only sponsor the number of workers you genuinely need to establish the UK business (up to a maximum of 10 workers at any one time). Once you have established a UK trading presence, you can add other routes to your licence and sponsor workers on those routes.

GBM1.20. We expect you to establish a UK trading presence within two years. If you fail to do so, you will no longer be permitted to sponsor any new workers on this route, your existing sponsored workers will not be permitted to extend their stay (even if they would otherwise be eligible), and you may lose your sponsor licence.

Service Supplier

GBM1.21. The Service Supplier route allows you to sponsor overseas workers who are undertaking temporary work assignments in the UK, where the worker is either a contractual service supplier employed by an overseas service provider, or is an independent professional established outside the UK, and the work is part of a contract covered by one of the UK's international trade commitments that is currently in force or being provisionally applied.

GBM1.22. Service Suppliers can come to the UK for up to 6 months or 12 months (depending on the trade agreement) per assignment. Service Suppliers can return to the UK for further assignments but are subject to the maximum cumulative period for the GBM routes.

Secondment Worker

GBM1.23. The Secondment Worker route is for overseas workers who are undertaking temporary work assignments in the UK, where the worker is being seconded to the UK as part of a high value contract or investment by their employer overseas.

GBM1.24. A Secondment Worker can come to the UK for up to one year initially, with the option to extend their stay by up to a further year. Two years is the maximum continuous period a person can stay in the UK on this

route. Secondment Workers are also subject to the maximum cumulative period for the GBM routes.

Who needs to be sponsored on the GBM routes?

GBM1.25. You will need to sponsor any overseas national you wish to employ if they are not a settled worker or do not otherwise have immigration permission to work for you in the UK. This includes most EU, EEA and Swiss nationals who arrived in the UK after 31 December 2020.

GBM1.26. You do not have to sponsor certain categories of worker, including

- Irish citizens
- people who have been granted status under the EU Settlement Scheme
- people with indefinite leave to enter or remain in the UK (also known as 'settlement')

GBM1.27. This is not a complete list. For further information on who does, and does not, need sponsorship, see section S1 of Part 2: Sponsor a worker.

What are the sponsorship requirements for the GBM routes?

GBM1.28. If you wish to sponsor a GBM worker, you must:

- hold a valid sponsor licence for the relevant GBM route, or routes
- understand what the GBM routes are and who is eligible to be sponsored on them
- understand the general requirements for sponsoring a worker – see Part 2: sponsor a worker
- ensure the employment meets the skill-level and (where relevant) salary requirements of the relevant GBM route
- only sponsor workers for eligible roles, as defined in the glossary
- assign a valid Certificate of Sponsorship (CoS) to the worker, pay the CoS fee and (if sponsoring a Senior or Specialist Worker) the Immigration Skills Charge
- have eligible Key Personnel in place to manage your licence and assign CoS – see section L4 of Part 1: Apply for a licence (and, if you are applying under UK Expansion Worker, section GBM3 of this document) for guidance on Key Personnel
- keep records for each worker you sponsor, including information on how you recruited the worker – see Appendix D to the sponsor guidance
- understand and comply with all of your sponsor duties – see Part 3: Sponsor duties and compliance

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GBM2. How to get a GBM sponsor licence

This section tells you about the requirements you must meet to be eligible for a sponsor licence for the Global Business Mobility routes.

General requirements

GBM2.1. If you wish to sponsor a worker on any of the Global Business Mobility (GBM) routes, you must hold a valid sponsor licence for the relevant route, or routes. If you do not already hold such a licence, you must apply for one by completing the online application form, paying the relevant application fee, and submitting the supporting evidence specified in Appendix A to the sponsor guidance.

GBM2.2. Before applying for your licence, you should read:

- Part 1: Apply for a licence for detailed information on the general requirements and the application process
- this section (and, if relevant, section GBM3) for guidance specific to the GBM routes

GBM2.3. If you already hold a valid licence to sponsor workers, but it does not include any of the GBM routes, you can apply to add one or more these routes to your existing licence. You may have to pay an additional fee if you are adding the Senior or Specialist Worker route to your licence. For further information on adding routes to your licence, see section L10 of Part 1: Apply for a licence.

Sponsorship fees

GBM2.4. For sponsor licensing fee purposes, the Senior or Specialist Worker route is classified as a 'Worker' route. This means that organisations applying for this type of licence will pay the 'large' sponsor licence fee if they do not meet the definition of 'small or charitable sponsor' in the Fees Regulations.

GBM2.5. Certificates of Sponsorship (CoS) assigned to Senior or Specialist Workers will be charged the 'Worker' CoS fee, regardless of company size, status or duration of employment.

GBM2.6. The remaining four GBM routes are classified as 'Temporary Worker' routes for sponsor licensing fee purposes. This means that organisations applying for a licence on one or more of these routes will pay the standard fee for a Temporary Worker sponsor licence, regardless of their size or charitable status. CoS assigned to workers on these routes will be charged the standard Temporary Worker CoS fee.

GBM2.7. You are responsible for paying the sponsor licence fee, Certificate of Sponsorship (CoS) fee and any associated administrative costs. If you are granted a licence, we will normally revoke your licence if we find you have recouped, or attempted to recoup, any part of the sponsor licence fee, CoS fee, or associated administrative costs, by any means, from a worker you are sponsoring on or after 9 April 2025. For further information, see 'Sponsorship fees' in section L6 of Part 1: Apply for a licence.

GBM2.8. For further information current fee levels, see the UK Visa Fees page on GOV.UK.

Specific requirements for a GBM sponsor licence

GBM2.9. In addition to the general requirements set out in Part 1: Apply for a licence, to be eligible for a sponsor licence on any of the GBM routes, you must be able to satisfy us that you:

- can offer employment which:
  - meets the skill-level requirement for the relevant route
  - where relevant, meets the salary requirements of the route
  - is genuine
  - where relevant, meets the rules on third-party working
  - complies with National Minimum Wage and the Working Time Regulations
  - otherwise meets the definition of 'eligible role' in the glossary
- have a qualifying overseas business link
- if applying on the UK Expansion Worker route, meet the additional requirements for that route

Qualifying overseas business link

GBM2.10. You must show there is a qualifying link between you (the sponsor) and the overseas business that will send workers to you. The nature of the link depends on the route, as set out in the table below:

Route	Qualifying overseas business link
Senior or Specialist Worker	You must be linked by common ownership or control or by a joint venture agreement to an overseas business.
Graduate Trainee	You must be linked by common ownership or control or by a joint venture agreement to an overseas business. In addition, the linked overseas business must offer a structured graduate training programme that has a legitimate work placement in the UK.
UK Expansion Worker	The UK business you are seeking to establish must be linked by common ownership or control to the

Route	Qualifying overseas business link
	overseas business in one of the ways set out in paragraphs GBM3.12 to GBM3.13. The overseas business must normally have been trading overseas for a minimum of 3 years (although there are some exceptions to this requirement). See section GBM3 for further details of the requirements for this route.
Service Supplier	You must have an eligible contract with an overseas service provider for the supply of a service which is covered by a relevant UK trade commitment that is currently in force or being provisionally applied.
Secondment Worker	You must have an eligible contract with an overseas business for goods or investment worth at least £10 million per year (and no less than £50 million in total).

GBM2.11. When you apply for your licence, you must provide details of any linked overseas business (referred to as a 'linked overseas entity' in the sponsor licence application form and sponsorship management system) and, where necessary, update these details during the course of your licence.

Meaning of 'common ownership or control'

GBM2.12. If you are applying on the Senior or Specialist Worker route or the Graduate Trainee route, you can show you are linked by common ownership or control to the overseas business by one of the following:

- one entity controls the composition of the other entity's board
- one entity holds enough shares in the other entity to have more than half of the voting rights in that other entity
- both entities have a common parent entity, and that parent entity (either by itself or through other entities) meets one of the two bullet points above
- one part of the business is a representative office or branch of the other part of that business – for example, a registered UK establishment of an overseas company of an overseas company
- one entity is related to the other entity as both are party to a joint venture agreement
- one entity is related to the other entity in that one is a party to a joint venture agreement and the other entity is formed by that joint venture agreement
- one entity is related to the other by an agreement that would constitute a joint venture agreement other than for the fact that joint venture agreements are not permitted in the country of operation or one of the entities is not permitted to enter into joint ventures in the country of operation

- one entity is related to the other in that one entity is party to an agreement that would constitute a joint venture agreement other than for the fact that joint venture agreements are not allowed in the country of operation or that entity is not allowed to enter into joint ventures in the country of operation, and the other entity is the entity formed by that agreement
- where both entities are either accountancy or law firms, one entity is related to the other by an agreement which allows both to use a trademark registered or established under UK law and the jurisdiction of the other entity's country of operation
- where both entities are either accountancy or law firms, one entity is related to the other by agreement which allows both to run under the same name in the UK and in the jurisdiction of the other entity's country of operation
- in the case of unincorporated associations, we may accept that the UK entity is linked to the overseas entity if there is evidence (such as a written constitution or Articles of Association) to show that one entity controls the other – for example, a member of one entity has the power to appoint the other entity's trustees

GBM2.13. Where the link between the two entities between which the transfer will take place is that an individual owns shares in each entity, that individual must have a majority shareholding in each entity. You must provide documentary evidence of your shareholding in terms of percentages held.

GBM2.14. If you are applying under UK Expansion Worker, only the first 4 bullet points above are applicable and you must meet any relevant additional requirements in paragraphs GBM3.12 to GBM3.13. Joint venture agreements and other types of common ownership or control are not accepted on this route.

Joint venture agreements: Senior or Specialist Worker, Graduate Trainee

GBM2.15. Where the link between you and the overseas business is through a joint venture, we must be satisfied that the worker will be working as part of the joint venture agreement before we accept that you can sponsor someone as a Senior or Specialist Worker or Graduate Trainee.

GBM2.16. There are many forms of joint venture and we will ask you to provide evidence to show that the venture is in operation. You should supply as many of the following which are applicable to your circumstances:

- if a new company has been formed, you should provide the relevant Companies House reference number or numbers and confirm which entities are involved in the joint venture and who are the owners of the new company
- public announcements of the joint venture

- a copy of an official letter from the overseas company (or foreign investor) to Ministers confirming their intention to invest in the UK, naming the entities involved in the joint venture
- a copy of the binding contract or partnership agreement, signed appropriately, between the entities in the joint venture agreement – this must include the names and positions of the signatories, the investment or ownership agreement of the enterprise, and timescales and phases of the project
- if the joint venture has a previous history of working with the Department for International Trade (DIT) or economic devolved government departments in Scotland, Wales or Northern Ireland, we may accept evidence via the DIT listing online of the joint venture

GBM2.17. The above is not a complete list and we may ask you for further evidence to assess your circumstances.

GBM2.18. We will not accept informal agreements of co-operation as sufficient evidence that a worker is required to be in the UK. The joint venture must already be operating and we must be satisfied there is a requirement for the worker to be here as part of the agreement before you can sponsor them as a Senior or Specialist Worker route or a Graduate Trainee.

Evidence of graduate training programme: Graduate Trainee

GBM2.19. If you are applying on the Graduate Trainee route, you must provide evidence that you are offering a structured graduate training programme. This could be a brochure for the course, evidence of the recruitment for the programme, or the address of a corporate website giving details of the programme.

Eligible contract: Service Supplier, Secondment Worker

GBM2.20. If you are applying on the Service Supplier or Secondment Worker routes, you must register any contract you have with a qualifying overseas business through which you intend to sponsor workers. You must do this when you apply for your licence via your SMS account.

GBM2.21. For the Service Supplier route, you must have at least one contract with an overseas service provider for a service that is covered by one of the UK's international trade agreements. The overseas service provider must have no commercial presence in the UK.

GBM2.22. The service supplied must be in line with a genuine contract with an overseas service provider for a period not exceeding 12 months. The contract must have been awarded through an open tendering or other procedure which guarantees that it's a genuine contract and that you will be the final consumer of the service. You cannot sponsor a Service Supplier if you will then supply them as labour to another organisation.

GBM2.23. For the Secondment Worker route, there must exist a contract for goods or investment between you and an overseas business worth at least £10 million per year and no less than £50 million overall. This means that if the duration of the contract is less than 5 years, it must be valued at least £50 million. If the contract is 5 years or more, it must be worth at least £10 million per year. If the contract has no specified end date, it must be worth at least £50 million over the first five years.

GBM2.24. If your application for a sponsor licence on either the Service Supplier or Secondment Worker route is approved, you can only assign a Certificate of Sponsorship (CoS) to a worker who is coming to the UK to fulfil that specific contract and no others.

GBM2.25. If you want to bring workers to the UK under a new contract, you must tell us about this and not assign any CoS in connection with the new contract until we have agreed that it meets the requirements set out in this guidance. You can use the 'Request change of circumstances function' in your SMS account to tell us about any new contract and request an increase in your CoS allocation. Once reported, we will ask you for any relevant supporting evidence and you must send us any documents or information within the time limit set.

GBM2.26. We will revoke your sponsor licence if you assign a CoS in connection with a contract that:

- you have not told us about
- you have told us about, but for which we have not yet confirmed that you can assign a CoS
- we have told you does not meet the requirements set out in this guidance

How to keep your licence

GBM2.27. If you are granted a licence, you must comply with all of your sponsor duties. If you do not, we may take action against you, including:

- downgrading your licence rating
- suspending your licence
- revoking your licence
- reporting you to the police or other relevant authorities

GBM2.28. For details, you must read Part 3: Sponsor duties and compliance.

Contents

GBM3. UK Expansion Worker: additional requirements

This section provides further detail on the requirements for a UK Expansion Worker sponsor licence and your additional responsibilities if you are granted a sponsor licence.

Overview

GBM3.1. If you are applying for a sponsor licence on the UK Expansion Worker route, in addition to the requirements set out in Part 1: Apply for a licence and section GBM2 of this document, you must also show that you have:

- a UK 'footprint'
- an overseas trading presence
- credible plans to expand to the UK and establish a trading presence within two years

GBM3.2. In addition, you must ensure you understand the rules on:

- exceptions for some businesses
- appointing Key Personnel
- your Certificate of Sponsorship (CoS) allocation and licence rating
- how long your licence will be valid for
- what you need to do after you have established a trading presence

UK 'footprint' requirement

GBM3.3. Unlike other sponsored work routes, if you are applying for a sponsor licence on the UK Expansion Worker route, you must not already be actively trading in the UK. If you are already trading, you should apply on another route (for example, Senior or Specialist Worker, or Skilled Worker).

GBM3.4. You must, however, show you have a UK 'footprint'. You can show this by providing evidence you have either:

- UK business premises – for example, a lease agreement or documents showing you have purchased the premises
- registered your UK business with Companies House as either an overseas company branch or a new company that is a subsidiary of the overseas linked business – in this case, you need only provide your Companies House reference number, or numbers

GBM3.5. We will reject your application if you do not provide any evidence of your UK footprint. We will refuse your application if you submit evidence (or we otherwise have evidence) that shows that you do not have a UK

footprint, or shows you already have a UK trading presence. For the purposes of this paragraph, 'trading presence' does not include where you are conducting limited pre-trade activities, such as employing a member of staff who you wish to nominate as your Authorising Officer.

Overseas trading presence requirement

GBM3.6. The overseas business that is expanding to the UK must:

- be currently active and trading overseas; and
- have been active and trading overseas for at least 3 years before the date of application (there are exceptions to this requirement for certain types of business)

GBM3.7. To be considered to be 'trading' for the purposes of the UK Expansion Worker route, your business must be engaged in a business or professional activity, such as buying, producing or selling goods, with the intention of generating a profit or surplus, or otherwise providing a service.

GBM3.8. Businesses whose primary activity involves holding investments such as private equity funds, venture capital firms, or other entities that do not actively provide goods or services to customers, are not considered to be trading for the purposes of this route. Investment-only businesses are therefore not eligible to be licensed on the UK Expansion Worker route.

GBM3.9. You must provide evidence that the overseas business has been trading throughout the 12-month period immediately before your application for a sponsor licence (for example, corporate bank statements covering the entire period). You must also provide evidence that shows the business was trading at the start of the 3-year period before the date of application and was actively trading throughout that 3-year period (for example, audited accounts). Appendix A to the sponsor guidance contains a detailed list of documents you can provide.

GBM3.10. We reserve the right to ask for more documents or information if we are not satisfied that the evidence you have submitted with your application shows you meet this requirement.

Credible expansion plan

GBM3.11. You must show you genuinely intend, and are able, to expand to the UK and establish a UK trading presence within two years. To determine this, we will consider evidence of your business planning and finances. We may also consider the size of your business, its previous activity and its potential.

GBM3.12. The planned expansion must be in the same type of business that you conduct overseas – it cannot be a new business venture by the

company. The business you are establishing in the UK must satisfy one of the following:

- it is either wholly owned by the overseas business or part of the same legal entity (such as a branch)
- it is wholly owned by a non-trading holding company where that holding company is in turn wholly owned by an immediate overseas parent company which is seeking to expand
- it is a sister company of the company seeking to expand, where both of those companies are wholly owned by the same immediate parent and either share the same directors or are linked by common ownership or control as set out in the first two bullets of paragraph GBM2.12 above

GBM3.13. A conglomerate with multiple businesses may expand multiple individual businesses within that corporate structure, providing each business they are seeking to expand operates in different sectors to each other and otherwise satisfies one of the above requirements.

Exceptions for certain types of business

GBM3.14. Some businesses may not have to provide specific evidence to show that they satisfy all of the criteria above. This depends on the type of business.

Japanese and Australian businesses

GBM3.15. You do not have to show you have been trading overseas for at least 3 years if you are seeking to establish a UK branch or subsidiary of either:

- a Japanese business under the UK-Japan Comprehensive Economic Partnership Agreement
- an Australian business under the Free Trade Agreement between the United Kingdom of Great Britain and Northern Ireland and Australia

GBM3.16. You must, however, show you are genuinely trading overseas and are capable of making a credible expansion to the UK, and meet all of the other requirements set out in this section.

GBM3.17. If you have been trading for less than 3 years, or do not submit evidence to show you have been trading overseas for at least 3 years, you will be limited to sponsoring one worker at a time. If you wish to sponsor more than one worker, you must provide evidence that you have traded for 3 or more years as outlined above.

Exceptions for businesses listed on specified stock exchanges

GBM3.18. You will not normally have to provide evidence of your overseas trading presence or ability to expand to the UK if the overseas business is listed on either:

- the London Stock Exchange Main Market or AIM market
- an international stock exchange that the Financial and Conduct Authority (FCA) considers to have an equivalent level of regulation to UK markets – see FCA List of Regulated Markets

GBM3.19. You must, however, provide evidence of which exception applies to you (for example, a link to the relevant online listing), and meet all of the other requirements in this section. We also reserve the right to ask for more documents or information if necessary to determine your application.

Appointing Key Personnel

GBM3.20. In common with other sponsored work routes, you must have an Authorising Officer, a Key Contact and at least one Level 1 User in place at the time you apply for your licence. These must meet the requirements set out in section L4 of Part 1: Apply for a licence.

Who can be your Authorising Officer?

GBM3.21. Your Authorising Officer (AO) can be either:

- a worker who is already based in the UK and will be overseeing your expansion to the UK
- if there no suitable person based in the UK who can take this role, a senior employee of the overseas business who will be assigned to the UK to oversee the expansion

GBM3.22. In either case, they must be the most senior person in your organisation responsible for the recruitment of migrant workers and ensuring that you meet all of your sponsor duties, or are otherwise responsible for your activity as a licensed sponsor.

Who can be your Level 1 User?

GBM3.23. If the AO is a worker based in the UK, they must appoint a Level 1 User (and a Key Contact) who is also be based in the UK. The Level 1 User must also be a settled worker (unless an exception set out in section L4 of Part 1: Apply for a licence applies).

GBM3.24. The AO can appoint themselves as the Level 1 User and/or Key Contact (if they meet the relevant requirements), or another person or people can fill these roles if they meet the requirements.

GBM3.25. If the AO named in your sponsor licence application is an employee of the overseas business, they must also be the Level 1 User. They can also be your Key Contact. If your licence application is approved, that person must assign a Certificate of Sponsorship (CoS) to themselves in order to make an application for entry clearance. The AO can appoint different people to these roles once they are legally resident in the UK

and you have obtained an A-rating for your licence. See 'Your CoS allocation and licence rating' below for further information.

Your CoS allocation and licence rating

GBM3.26. You will only be permitted to sponsor as many people as you genuinely need to establish your business in the UK, up to a maximum of 10. Your CoS allocation will therefore not be higher than 10 at any time. You can replace individual workers within this allocation (for example, if a sponsored worker leaves the company or returns to their employer overseas) but you will not be permitted to sponsor more than 10 workers on this route at any one time.

GBM3.27. Your CoS allocation and licence rating will depend on whether the AO named in your licence application is based in the UK or overseas, as explained below. For further information on licence ratings, see section L8 of Part 1: Apply for a licence.

If your AO is based in the UK

GBM3.28. If the person named in your licence application as your AO is already based in the UK, and you are granted a sponsor licence, you will be given an A-rating and your full CoS allocation (up to a maximum of 10).

If your AO is based outside the UK

GBM3.29. If the person named in your licence application as your AO is outside the UK, you will be given a CoS allocation of 1 initially, and you will be given a Provisional licence rating.

GBM3.30. The AO (who must also be the Level 1 User) must assign that CoS to themselves in order to make a successful application for entry clearance to the UK. They will need to take certain actions to update your licence details and uprate your licence rating after they have been granted, as explained below.

If the AO is granted permission

GBM3.31. If the AO is granted entry clearance, they must update their details on the sponsorship management system (SMS) as soon as possible to include the following details:

- the type of permission they have (this will be 'UK Expansion Worker')
- the expiry date of their permission
- their Home Office reference number (this can be their Visa Application Form number, their biometric residence permit number, or any other reference number provided by the Home Office to the applicant)
- their UK address (when they know this)

GBM3.32. Before you can sponsor any other workers, the AO must also make a request via your SMS account for your organisation's licence rating to be changed from Provisional to an A-rating.

GBM3.33. The AO can report these details (and make this request) as soon as they have been granted permission to come to the UK – they do not have to wait until they are in the UK. However, the AO must actually come to the UK to start their sponsored role no more than 28 days after the start date recorded on their CoS or the date their entry clearance becomes effective (whichever is the later), as set out in section S3 of Part 2: Sponsor a worker.

GBM3.34. Once you have an A-rating for your sponsor licence, you can ask to increase your CoS allocation via your SMS account, up to a maximum of 9.

GBM3.35. For guidance on how to make these changes, see 'Guide 4: How to request other changes to your details' in SMS Manual 2.

If the AO is refused permission

GBM3.36. If the AO's entry clearance application is refused, or if their permission is cancelled, we will normally revoke your licence. However, we may exceptionally give you the opportunity to nominate an alternative AO, Level 1 User and Key Contact instead. If the new AO is based outside the UK, they will need to meet all of the rules set out in this section and make a successful entry clearance application.

How long your licence will be valid for

GBM3.37. If your sponsor licence application is successful, your licence will be valid for 4 years. You cannot hold a UK Expansion Worker licence for longer than 4 years.

GBM3.38. As the purpose of this route is to enable genuine overseas businesses to expand to the UK, we expect you to have established a full trading presence in the UK within two years from the date your licence was granted. At the end of this two-year period, we will reduce your CoS allocation on this route to zero. This means you will be unable to sponsor any applications from new workers, or extension applications from your existing sponsored workers, on this route. If you have been granted a licence to sponsor workers on any other routes, the CoS allocations on those routes will not be automatically altered at the end of this two-year period.

GBM3.39. We may also undertake a compliance visit to see if you are continuing to meet the conditions of your licence and if there is a realistic prospect that you will be able to establish a UK trading presence. If we are not satisfied that you are continuing to meet the requirements of this route, we are likely to revoke your licence. See section C7 of Part 3: Sponsor

duties and compliance for information on compliance visits and action we can take if you are not meeting your sponsorship responsibilities.

When you have established a UK trading presence

GBM3.40. Once you have established a UK trading presence, you can apply to add other routes to your licence (for example, Skilled Worker or Senior or Specialist Worker). Your sponsored workers can then apply to switch to these routes if they meet the relevant requirements.

GBM3.41. You can choose whether or not to have your licence for the UK Expansion Worker route made dormant. In either case, it will automatically expire after 4 years and you will not have the option to renew it.

Contents

GBM4. Immigration requirements for GBM workers

This section tells you about the immigration requirements applicants must meet to come to the UK on the Global Business Mobility routes and where you can find further information.

Overview

GBM4.1. People who wish to come to the UK on the Global Business Mobility (GBM) routes must meet the validity, suitability and eligibility requirements of the relevant appendix to the Immigration Rules:

- Appendix Global Business Mobility – Senior or Specialist Worker
- Appendix Global Business Mobility – Graduate Trainee
- Appendix Global Business Mobility – UK Expansion Worker
- Appendix Global Business Mobility – Service Supplier
- Appendix Global Business Mobility – Secondment Worker

GBM4.2. These requirements include that the applicant:

- is aged at least 18 on the date of application
- meets the points requirement
- meets the genuine intention requirement
- meets the financial requirement
- if they were previously an officially sponsored student, has the consent of that sponsor to making the application
- if they are applying as a Service Supplier, meets the nationality or residence requirements
- meets the requirements relating to entry to the UK, extension of permission or 'switching', as appropriate

GBM4.3. This is not the full list of requirements – you must refer to the relevant Immigration Rules for these.

GBM4.4. As the sponsor, you must be aware of the maximum cumulative period of permission a GBM worker can be sponsored for.

Points requirement

GBM4.5. All applicants on the GBM routes must meet a 'points' requirement.

GBM4.6. Applicants applying as a Senior or Specialist Worker, Graduate Trainee, or UK Expansion Worker must score 60 points against the following three criteria:

Points type	Further information	Points available
Sponsorship	See 'Points for sponsorship' below this table.	20
Job at an appropriate skill level	See section GBM6.	20
Salary at required level	See section GBM7.	20

GBM4.7. Applicants applying as a Service Supplier or Secondment Worker must score 40 points against the following two criteria:

Points type	Further information	Points available
Sponsorship	See 'Points for sponsorship' below this table.	20
Job at an appropriate skill level	See section GBM6.	20

GBM4.8. Although Service Suppliers and Secondment Workers are not required to score points for salary, you must ensure they are paid in accordance with National Minimum Wage legislation.

Points for sponsorship

GBM4.9. To score points for sponsorship, the applicant must:

- have a valid Certificate of Sponsorship (CoS) assigned by you (the sponsor) on the relevant GBM route
- be sponsored for a job role which:
  - is genuine
  - where relevant, meet the rules on working for a third party
  - complies with National Minimum Wage and the Working Time Regulations
- meet the overseas work requirement
- if applying as a Service Supplier or Secondment Worker, meet the eligible contract requirement

Genuine role requirement

GBM4.10. We will not award points for sponsorship if we have reasonable grounds to believe that the job role you are sponsoring the applicant for:

- does not exist
- is a sham; or
- has been created mainly so the worker can apply for entry clearance or permission to stay

GBM4.11. If you assign a CoS for a role which is not genuine, we will refuse the worker's application and we will revoke your licence.

Working for a third party

GBM4.12. You must not assign a CoS to a worker for a role which amounts to either:

- the hire of the worker to a third party who is not the sponsor to fill a position with that party, whether temporary or permanent
- contract work to undertake an ongoing routine role, or to provide an ongoing routine service, for a third party who is not the sponsor, regardless of the nature or length of any arrangement between the sponsor and the third party

GBM4.13. If we have reasonable grounds to believe you have done so, we will not award points for sponsorship. If that happens, we will refuse the worker's application and we are likely to revoke your licence.

GBM4.14. For further information, see 'Working on a contract basis' in section S1 of Part 2: Sponsor a worker.

Compliance with National Minimum Wage and the Working Time Regulations

GBM4.15. The role you are sponsoring the worker for must always comply with the National Minimum Wage Regulations 2015 and the Working Time Regulations 1998. We will refuse any application for entry clearance or permission where we have reasonable grounds to believe it does not. We will also consider revoking your sponsor licence if we find you are breaching these Regulations.

GBM4.16. For further information, see 'Compliance with National Minimum Wage and the Working Time Regulations' in section S4 of Part 2: Sponsor a worker.

Eligible contract requirement for Service Suppliers or Secondment Workers

GBM4.17. If you are sponsoring a Service Supplier or Secondment Worker, you must have at least one eligible contract with an overseas service provider. This must be the contract the applicant will be working on whilst in the UK. You must have registered the contract with the Home Office via your SMS account, either when you applied for your sponsor licence or before assigning a CoS to the worker. You must confirm which contract the applicant will be working on when you assign the CoS.

GBM4.18. If the applicant is a Service Supplier, the contract must be for a service covered by one of the UK's international trade agreements that is currently in force or being provisionally applied (for example, the UK-EU Trade and Cooperation Agreement or the General Agreement on Trade

in Services), and the applicant must meet the relevant nationality or residence requirements. For further information on eligible agreements, see Service Supplier visa: eligible trade agreements and sectors.

Genuine intention requirement

GBM4.19. The applicant must:

- genuinely intend, and be able, to do the role for which they are being sponsored; and
- not intend to take employment other than in the role for which they are being sponsored, or as otherwise permitted by their conditions of stay (see section S8 of Part 2: Sponsor a worker for more information on conditions of stay)

Financial requirement

GBM4.20. If the applicant is applying for entry clearance from outside the UK, or has been in the UK for less than one year at the date of application, they must show they have enough funds to support themselves and any family members in the UK.

GBM4.21. For routes other than UK Expansion Worker, if you are an A-rated sponsor, you can certify this requirement is met when you assign a CoS to the worker (also known as 'certifying maintenance'). Otherwise, the applicant must provide evidence of funds as specified in Appendix Finance to the Immigration Rules.

GBM4.22. You cannot certify maintenance if the worker you are sponsoring is applying as a UK Expansion Worker.

GBM4.23. If the applicant is applying for permission to stay and has been living in the UK with permission for 12 months or longer on the date of application, they will meet the financial requirement and do not need to show evidence of funds.

GBM4.24. For further information on the financial requirement, see section S7 of Part 2: Sponsor a worker.

Former officially-sponsored students

GBM4.25. If the applicant has, in the 12 months before the date of application, received an award from a Government or international scholarship agency covering both fees and maintenance, they must provide written consent to their application from that Government or agency. If they do not, we will reject their application as invalid.

Nationality or residence requirements for Service Suppliers

GBM4.26. An applicant on the Service Supplier route must be, and provide evidence they are, one of the following:

- where the service that the applicant will provide is covered by a contractual service supplier commitment in the General Agreement on Trade in Services and the applicant's employer is established in a country or territory that has made a notification under Article XXVIII(k)(ii)(2) of that agreement, a permanent resident of that country or territory – the countries that have made such a notification are Armenia, Australia, Canada, New Zealand, and Switzerland
- where the service that the applicant will provide is covered by a commitment in the Temporary Agreement between the Swiss Confederation and the United Kingdom of Great Britain and Northern Ireland on Services Mobility, a permanent resident of Switzerland
- where the service that the applicant will provide is covered by a commitment in the United Kingdom-European Union Trade and Cooperation Agreement, a national of any Member State of the European Union or any other person included in the definition of 'natural person of a Party' for the European Union in Article 512(k) of that agreement
- where the service that the applicant will provide is covered by a contractual service supplier commitment in the CARIFORUM-United Kingdom Economic Partnership Agreement, a national of any CARIFORUM State that has provisionally applied or brought into force that agreement
- where the service that the applicant will provide is covered by a commitment in the Free Trade Agreement between the United Kingdom of Great Britain and Northern Ireland and Australia, a permanent resident of Australia
- where the service that the applicant will provide is covered by a commitment in the Free Trade Agreement between the United Kingdom of Great Britain and Northern Ireland and New Zealand, a permanent resident of New Zealand
- where the service that the applicant will provide is covered by a commitment in the UK-India Comprehensive Economic and Trade Agreement (CETA) (when that agreement comes into force), a national of India
- where the service that the applicant will provide is covered by a commitment in the Comprehensive and Progressive Agreement for Trans-Pacific Partnership (CPTPP), either a permanent resident of Australia or (for independent professionals only) of New Zealand, or a national of a party to that agreement – current parties to the CPTPP are:
  - Australia
  - Brunei
  - Chile
  - Japan

    - Malaysia
    - Peru
    - New Zealand (independent professionals only)
    - Vietnam (contractual service suppliers only)
- in all other cases, a national of the country or territory in which the overseas service provider is based

GBM4.27. A service can only be covered by a trade commitment when the relevant agreement is in force or provisionally applied. To see which agreements are in force, refer to the published list of eligible trade agreements.

GBM4.28. Where the relevant trade agreement is CPTPP, both the country where the overseas service provider is located and the country of which the service supplier is a national must have ratified the UK's accession to CPTPP.

Entry requirement

GBM4.29. Applicants must apply for entry clearance (a visa) to be able to come to the UK on these routes. If they arrive in the UK without the relevant visa, they will be refused entry, even if they otherwise meet the requirements.

Extension of permission

GBM4.30. Those already in the UK with permission on a GBM route can apply to extend their stay on the same route, up to the maximum continuous period for the route (where one exists), or up to the maximum cumulative period for the GBM routes (whichever of these ends sooner) if they meet the relevant requirements – this could be to continue in the same employment or to change employer or employment. See section S9 of Part 2: Sponsor a worker for further information on extension and change of employment applications.

'Switching' to the GBM routes

GBM4.31. People in the UK on a non-GBM immigration route may be able to 'switch' (change route) to a GBM route if they meet all the relevant immigration requirements (including the overseas work requirement) and were not last granted permission:

- as a Visitor
- as a Student, unless they meet the additional rules for people switching from the Student route (as set out below)
- as a Short-term student
- as a Parent of a Child Student
- as a Seasonal Worker
- as a Domestic Worker in a Private Household
- outside the Immigration Rules

GBM4.32. If a person you wish to sponsor is in the UK on any of the above routes, or was last granted outside the Immigration Rules, they will normally need to leave the UK and apply for entry clearance on the relevant GBM route.

GBM4.33. People in the UK with permission on one GBM route may be able switch to another GBM route if they meet the relevant requirements.

Switching from the Student route

GBM4.34. If the person you wish to sponsor will be applying for permission to stay (from within the UK) and they have, or last had, permission as a Student (including as a Tier 4 (General) Migrant), they must meet one of the following conditions on the date they make their application to be allowed to switch to the GBM routes:

- they must have completed the course of study for which they were being sponsored as a Student
- they must be studying a full-time course of study at degree level or above with a higher education provider which has a track record of compliance, and the start date on their CoS must be no earlier than the course completion date
- they must be studying a full-time course of study leading to the award of a PhD with a higher education provider which has a track record of compliance, and the start date on their CoS must be no earlier than 24 months after the start date of their PhD

GBM4.35. A 'higher education provider with a track record of compliance' will be shown on the register of student sponsors with the type 'Higher Education Institution (HEI)' and with the status 'Student Sponsor – Track Record'.

GBM4.36. If you wish to sponsor a worker who has, or last had, permission as a Student, you must carefully check they can meet one of the above conditions before you assign a CoS to them. If they do not meet one of these conditions, they will not be permitted to switch.

How long a GBM worker will be granted for

GBM4.37. The period of permission we will grant to a GBM worker if they make a successful application for entry clearance or permission to stay depends on the GBM route on which they are being sponsored, and whether they have had previous permission on any of the GBM routes. GBM workers are subject to a maximum cumulative period (in most cases, 5 years permission on any GBM route or Intra-Company route in any 6-year period).

GBM4.38. If the applicant does not currently have permission on a GBM route, any permission granted for the period between the date of decision and the start date of the job detailed on their CoS will be excluded from the

cumulative permission for the purpose of determining the period of grant of permission below (but not when determining the maximum cumulative period of permission below).

Grant period for a Senior or Specialist Worker

GBM4.39. A Senior or Specialist Worker will be granted permission for whichever is the shortest of the following:

- 5 years after the start date of the job detailed on the CoS
- 14 days after the end date of the job detailed on the CoS
- to the date at which they will have reached the maximum cumulative period for the GBM routes

Grant period for a Graduate Trainee

GBM4.40. A Graduate Trainee will be granted permission for whichever is the shortest of the following:

- 1 year after the start date of the job detailed on the CoS
- 14 days after the end date of the job detailed on the CoS
- to the date at which they will have reached the maximum cumulative period for the GBM routes

Grant period for a UK Expansion Worker

GBM4.41. A UK Expansion Worker will be granted permission for whichever is the shortest of the following:

- 1 year after the start date of the job detailed on the CoS
- 14 days after the end date of the job detailed on the CoS
- to the date at which the applicant will have had continuous permission as a UK Expansion Worker totalling 2 years
- to the date at which they will have reached the maximum cumulative period for the GBM routes

Grant period for a Service Supplier

GBM4.42. An applicant for entry clearance on the Service Supplier route will be granted for whichever is the shortest of the following:

- 14 days after the end date of the job detailed on the CoS
- the maximum single assignment period, which is:
  - if the applicant is covered by a relevant commitment in the UK-EU Trade and Cooperation Agreement, 12 months
  - if the applicant is covered by a relevant commitment in the Temporary Agreement between the Swiss Confederation and the United Kingdom of Great Britain and Northern Ireland on Services Mobility, 12 months

- if the applicant is covered by a relevant commitment in the Free Trade Agreement between the United Kingdom of Great Britain and Northern Ireland and Australia, 12 months
- if the applicant is covered by a relevant commitment in the Comprehensive and Progressive Agreement for Trans-Pacific Partnership (CPTPP), and is a person included in the definition of 'business person' under Article 12.1 of that agreement, 12 months
- if the applicant is an Indian national covered by a relevant commitment in the UK-India Comprehensive Economic and Trade Agreement (CETA) (when that agreement comes into force), 12 months
- in all other cases, 6 months

- to the date at which they will have reached the maximum cumulative period for the GBM routes

GBM4.43. If the application is for permission to stay, the applicant will be granted for whichever is the shortest of the following:

- 14 days after the end date of the job detailed on the CoS
- the maximum single assignment period, which is:
  - if the applicant is covered by a relevant commitment in the UK-EU Trade and Cooperation Agreement, the difference between the period the applicant has already spent in the UK since their last grant of permission as a Service Supplier and 12 months
  - if the applicant is covered by a relevant commitment in the Temporary Agreement between the Swiss Confederation and the United Kingdom of Great Britain and Northern Ireland on Services Mobility, the difference between the period the applicant has already spent in the UK since their last grant of permission as a Service Supplier and 12 months
  - if the applicant is covered by a relevant commitment in the Free Trade Agreement between the United Kingdom of Great Britain and Northern Ireland and Australia, the difference between the period the applicant has already spent in the UK since their last grant of permission as a Service Supplier and 12 months
  - if the applicant is covered by a relevant commitment in the Comprehensive and Progressive Agreement for Trans-Pacific Partnership (CPTPP), the difference between the period the applicant has already spent in the UK since their last grant of permission as a Service Supplier and 12 months
  - if the applicant is an Indian national covered by a relevant commitment in the UK-India Comprehensive Economic and Trade Agreement (CETA) (when that agreement comes into force), the difference between the period the applicant has already spent in the UK since their last grant of permission as a Service Supplier and 12 months
  - in all other cases, the difference between the period the applicant has already spent in the UK since their last grant of permission as a Service Supplier and 6 months

- to the date at which they will have reached the maximum cumulative period for the GBM routes

Annual limit for specified occupations under the UK-India CETA

GBM4.44. The total number of grants of entry clearance or permission to stay for the following occupation codes and job roles sponsored under the UK-India CETA (when this agreement comes into force) must not exceed 1,800 in any calendar year (1 January to 31 December):

- 3415: classical musician
- 3433: yoga instructor
- 5434: traditional chef

GBM4.45. This annual limit applies to these job roles collectively, not to each job role.

GBM4.46. We will update the sponsorship management system (SMS) when the annual limit is close to being reached, or has been reached. You should not assign a CoS if the limit has been reached. If you do, the worker's application may be rejected or refused.

Grant period for a Secondment Worker

GBM4.47. A Secondment Worker will be granted permission for whichever is the shortest of the following:

- 1 year after the start date of the job detailed on the CoS
- 14 days after the end date of the job detailed on the CoS
- to the date at which the applicant will have had continuous permission as a Secondment Worker totalling 2 years
- to the date at which they will have reached the maximum cumulative period for the GBM routes

Maximum cumulative period of permission for GBM workers

GBM4.48. Except where a transitional arrangement for Senior or Specialist Workers applies, all workers on the GBM routes are subject to a maximum cumulative period of permission.

GBM4.49. When you sponsor a GBM worker, you should make yourself aware of any previous permission the worker has had on these routes. This will determine what, if any, permission they can be granted.

GBM4.50. If the worker is a high earner applying as a Senior or Specialist Worker, they can stay in the UK for a cumulative total of 9 years in any 10-year period.

GBM4.51. In all other cases, the maximum period of permission is a cumulative total of 5 years in any 6-year period.

GBM4.52. These maximum periods include all time spent in the UK on any of the GBM routes, including the predecessor Intra-Company routes. There are shorter maximum periods for specific routes – see the grant periods above and the example below:

Example 1
A worker is granted permission for one year to come to the UK on the Secondment Worker route. They extend their stay up to 2 years (which is the maximum period permitted on that route). At the end of the 2 years, the worker leaves the UK and immediately starts a new secondment with a different sponsor in the UK. After a further 2 years with permission on this route, if the overseas business wanted to send them on another secondment to the UK, the worker would be limited to 1 year as this would be the point at which they had been in the UK for 5 years in a 6-year period.

Example 2
A worker is assigned to the UK on the Senior or Specialist Worker route for 3 years and is then sent on a work assignment to Sweden for 6 months. If they were then reassigned to the UK, the maximum time they could stay on the Senior or Specialist Worker route is 2 years (unless they are a high earner paid over £73,900). At the end of those 2 years, they have reached the limit of 5 years in a 6-year period.

If, after a further 6 months outside the UK, the worker then wished to return on the Senior or Specialist Worker route, they would be able to stay a further 3 years before they reached the limit again.

Example 3
A worker on a graduate training programme is sent to the do a 12-month work placement in the UK on the Graduate Trainee route. After their placement, they have been promoted to a specialist position and the sponsor wishes them to extend their assignment to the UK on the Senior or Specialist Worker route. Because they have already had 1 year on a Global Business Mobility route, they can only stay for a further 4 years before they reach the limit of 5 years in 6.

At the end of this assignment, the worker has been promoted once again and their new assignment is paid over £73,900. Since their new position qualifies as a high earner, the sponsor can extend their assignment on the Senior or Specialist Worker route for a further 4 years before they reach the limit of 9 years in a 10-year period.

How the maximum period is calculated

GBM4.53. When calculating the cumulative periods of permission referred to above, all of the following are included:

- all previous periods of permission granted on any of the GBM routes
- all previous periods of permission granted on the predecessor Intra-Company routes
- if the applicant doesn't currently hold permission on a GBM route, any permission they could be granted as a result of their current application for permission, beginning on the start date of the job stated on their CoS
- if the applicant is applying for permission to stay and has, or last had, permission on the GBM routes, any permission they could be granted as result of their current application, beginning on the date of decision
- any period of permission on the GBM routes or the Intra-Company routes extended under section 3C of the Immigration Act 1971 (that is, when the applicant had an in-time application for permission to stay under consideration, during any period they could appeal against, or apply for an administrative review of, a decision on that application, or pending such an appeal or administrative review)

GBM4.54. You should plan carefully when assigning a CoS to a worker on the GBM routes and choose work start and end dates appropriately so that the worker is not prevented from coming to, or staying in, the UK when you need them.

Transitional arrangement: Senior or Specialist Workers granted before 6 April 2011

GBM4.55. A Senior or Specialist Worker is not subject to the maximum cumulative period of permission if all of the following requirements are met:

- they are applying for permission to stay from within the UK (not entry clearance from overseas)
- they previously had permission on the Tier 2 (Intra-Company Transfer) route under the rules in place before 6 April 2011, or as a Work Permit holder under the rules in place before 27 November 2008
- they have had continuous permission as a Senior or Specialist Worker (or its predecessor routes) since then (including any short period of overstaying disregarded under the 'Exceptions for Overstayers' section in Part Suitability of the Immigration Rules)

GBM4.56. Senior or Specialist Workers who meet these conditions can extend their stay for up to 5 years with each application.

GBM4.57. This transitional arrangement does not apply to any other GBM route.

Further information on immigration requirements

GBM4.58. You can find more information in the Work visas section of GOV.UK.

GBM4.59. You should also refer to sections S7 to S9 of Part 2: Sponsor a worker for further information on immigration requirements, conditions of stay, extension applications and change of employment applications.

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GBM5. Overseas work requirement for GBM workers

This section tells you how an applicant on the Global Business Mobility (GBM) routes can meet the overseas work requirement.

Overview

GBM5.1. Unless an exception in paragraph GBM5.13 applies, applicants on the GBM routes must show they have worked overseas for an eligible business for a minimum period of:

- 12 months in the case of a Senior or Specialist Worker, UK Expansion Worker or Service Supplier
- 6 months in the case of a Secondment Worker applying on or after 8 April 2026 (the minimum period was 12 months for applications submitted before that date)
- 3 months in the case of a Graduate Trainee

GBM5.2. In this section, an 'eligible business' means:

- where the applicant is a Senior or Specialist Worker, Graduate Trainee or UK Expansion Worker, any business that forms part of the sponsor group
- where the applicant is a Service Supplier, the overseas service provider you have a services contract with under an eligible trade agreement
- where the applicant is a Secondment Worker, the overseas business you have an eligible contract with for goods or investment

GBM5.3. In this section, time spent working for clients of the eligible business can count towards any required continuous period of work. Where this work is undertaken outside the UK, it can be counted towards the required time spent working outside the UK.

GBM5.4. Applicants do not normally need to submit evidence of their overseas work with their application. However, the Home Office reserves the right to ask for this. You should therefore retain any necessary evidence of the worker's overseas employment.

Overseas work requirement for GBM routes other than Graduate Trainee

GBM5.5. To meet the overseas work requirement for GBM routes other than Graduate Trainee, the applicant must:

- be currently working for an eligible business, as defined in paragraph GBM5.2

- have been working for an eligible business, either in or out of the UK, for a continuous period of at least 12 months (or 6 months in the case of a Secondment Worker applying on or after 8 April 2026) immediately before the date of application; and
- have spent at least 12 months (or for 6 months in the case of a Secondment Worker applying on or after 8 April 2026) working outside the UK for an eligible business during that period of continuous work

GBM5.6. The minimum required period of overseas work does not have to have been continuous, provided it was accumulated during a period of continuous work for an eligible business before the date of application.

GBM5.7. The continuous period of work referred to above will not be broken by any of the absences listed below (but these periods of absence do not count towards the minimum required period of working outside the UK):

- statutory maternity, paternity, parental, or shared parental leave
- statutory adoption leave
- sick leave
- assisting with a national or international humanitarian or environmental crisis, with the agreement of the eligible business
- taking part in legally organised industrial action
- jury service
- attending court as a witness

GBM5.8. The examples below explain how this requirement works in the case of an applicant applying as a Senior or Specialist Worker. The same principles apply to UK Expansion Workers, Service Suppliers and Secondment Workers (except, in the case of Secondment Workers, references to 12 months should be read as 6 months, and references to 6 months as 3 months):

Example 1
An applicant has worked for the sponsor group for 2 years and during that time has moved regularly between offices in the UK and overseas. They would meet the overseas work requirement, provided at least 12 months was spent working outside the UK and they are still working for the sponsor group at the time of their application.

Example 2
An applicant worked for the sponsor group outside the UK for 6 months before taking parental leave for 1 year. They then returned to work for the same business for a further 6 months before being assigned to the UK. In this scenario, the two 6-month periods of employment can be combined. Since the applicant worked for the sponsor group for 12 months in total and all the work was outside the UK, they will meet the overseas work requirement.

Example 3
An applicant worked overseas for the sponsor group for 2 years. They left their job to come to the UK to study for 3 years. During their final year of study, they started working for the sponsor group again on a part-time basis, and are now applying to switch to the Senior or Specialist Worker route. In this scenario, the applicant would not meet the overseas work requirement. Although they have worked overseas for the sponsor group for more than 12 months, this did not occur during their most recent period of continuous work for the sponsor group.

GBM5.9. Where the applicant is a self-employed Service Supplier (independent professional), the 12 months working outside the UK can include both self-employment and time working for other businesses, provided this work was in the same sector as the service they are, or will be, providing to you.

Overseas work requirement for Graduate Trainees

GBM5.10. Graduate Trainees must be working for the sponsor group on the date of application, and have worked outside the UK for the sponsor group for a continuous period of at least 3 months immediately before the date of application.

GBM5.11. This 3-month period must be continuous with no breaks (even where it would be a 'permitted absence' on the other GBM routes) and cannot include time spent working in the UK.

GBM5.12. Because of this requirement, it will not normally be possible to 'switch' in-country to the Graduate Trainee route, and a person granted permission as a Graduate Trainee will not normally be able to extend that permission while in the UK, as they are unlikely to meet the overseas work requirement for this route.

Exceptions to the overseas work requirement

GBM5.13. The applicant does not have to meet the overseas work requirement if they are applying as any of the following and meet the conditions specified in the bullet points below:

- a Senior or Specialist Worker or a UK Expansion who meets the definition of 'high earner', provided they are working for the sponsor group on the date of application
- a UK Expansion Worker who is working for the sponsor group on the date of application and they are one of the following:
  - a Japanese national seeking to establish a UK branch or subsidiary of the sponsor group under the UK-Japan Comprehensive Economic Partnership Agreement
  - a national or permanent resident of Australia seeking to establish a UK branch or subsidiary of the sponsor group under the UK-Australia Free Trade Agreement

- a Secondment Worker who is applying for an extension of their Secondment Worker permission (from within the UK) to continue working for the same sponsor as in their last grant of permission on this route

GBM5.14. Where the precise requirements specified in paragraph GBM5.13 are not met, the applicant must meet the overseas work requirement described in paragraphs GBM5.5 to GBM5.8.

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GBM6. Skill level for GBM workers

This section tells you how to ensure that any jobs you wish to sponsor workers for on the Global Business Mobility routes are at the appropriate skill level.

Overview

GBM6.1. All applicants applying on the Global Business Mobility (GBM) routes must score 20 points for having a job at the appropriate skill level. To meet this requirement, the applicant must:

- be sponsored in an eligible SOC 2020 occupation code
- if relevant, meet the Academic Technology Approval Scheme (ATAS) requirement

GBM6.2. There is an alternative way for Service Suppliers to meet the skill-level requirement, based on their previous qualifications and experience (known as 'Option B').

GBM6.3. In most cases, the job the applicant is being sponsored to do must be skilled to level 6 or above (graduate level) on the Regulated Qualifications Framework for England and Northern Ireland, or the equivalent level in Wales or Scotland. The applicant does not necessarily need to have a degree-level qualification but the work they do must be at that level.

GBM6.4. If the applicant is applying as a Graduate Trainee, in addition to the requirements in this section, the job must be part of a structured graduate training programme, with clearly defined progression towards a managerial or specialist role within the sponsor group. You must provide evidence of the graduate training programme when you apply for your sponsor licence.

Eligible occupation code

GBM6.5. The job the applicant is being sponsored to do must be in a SOC 2020 occupation code listed in Table 2, Table 2b or Table 3 of Appendix Skilled Occupations. Jobs listed in Table 2b are only eligible to be sponsored if the transitional provision for skill level described at paragraph GBM6.11 is met. Where the job is a healthcare occupation in Table 3 subject to 'Agenda for Change' pay scales, it must not be below Band 5. There is an alternative way for some Service Suppliers to meet the skill-level requirement.

GBM6.6. When you assign a Certificate of Sponsorship (CoS), you must take care to choose the appropriate occupation code for the job the worker will do. The University of Warwick has developed a Computer Assisted Structured Coding Tool (CASCOT) which can help you choose the

correct SOC 2020 code. There is also guidance in section S3 of Part 2: Sponsor a worker.

GBM6.7. We will not award points to an applicant if we have reasonable grounds to believe you have chosen a less appropriate occupation code for either of the following reasons:

- the most appropriate occupation code is not eligible under the GBM routes
- the most appropriate occupation code has a higher going rate (where the applicant is subject to a going rate requirement) than the proposed salary

GBM6.8. If this happens, we will refuse the worker's application and are likely to revoke your licence.

GBM6.9. When assessing if you have chosen an inappropriate occupation code, we may consider a number of factors, including, but not limited to:

- whether you have shown a genuine need for the job as described
- whether the worker has the appropriate skills, qualifications and experience needed to do the job as described - we may request evidence
- your history of compliance with the immigration system including, but not limited to, paying sponsored workers appropriately
- any additional information you may provide

GBM6.10. If we find you have provided false, misleading or otherwise incorrect information about the skill level of the job on a CoS, we will take compliance action against you.

Transitional provision for skill level: occupations in Table 2b

GBM6.11. Table 2b of Appendix Skilled Occupations lists occupations which are generally no longer eligible for the GBM routes. However, you may sponsor a worker in these occupations if they meet all of the following requirements:

- they were granted permission on one of the GBM routes under the Immigration Rules in force before 4 April 2024
- they have had continuous permission on the same GBM route since then (continuous permission can include short periods without permission that were disregarded under the 'Exceptions for overstayers' section in Part Suitability of the Immigration Rules)
- they are applying for further permission on the same GBM route as in their last grant of permission
- the application is made before 4 April 2030

GBM6.12. You cannot sponsor a GBM worker in these occupation codes if they do not qualify under the above transitional provision. A worker cannot

qualify under this transitional provision if they are applying for permission on a different GBM route to the one they were last granted permission on.

Skill level for Service Suppliers ('Option B')

GBM6.13. Service Suppliers can meet the skill-level requirement under either 'Option A' or 'Option B'.

GBM6.14. Under Option A, the applicant can meet the skill-level requirement in the normal way by being sponsored for a job in an eligible occupation code, as set out above.

GBM6.15. Under Option B, the applicant can be sponsored in a job that's not listed as eligible for the GBM routes in Appendix Skilled Occupations if they meet the qualifications and professional experience requirements set out below.

Qualifications requirement for Service Suppliers under Option B

GBM6.16. A Service Supplier claiming points for skill level under Option B must have one of the following qualifications:

- a university degree
- a technical qualification that's equivalent to a university degree – this includes (but is not limited to) the following Swiss qualifications that have been assessed by UK ENIC to be equivalent to a UK degree (names are given in English, German, French and Italian respectively, with feminine (F) and masculine (M) forms where required):
  - Advanced Federal Diploma of Higher Education (Diplom HF; Diplôme ES; Diploma SSS) delivered by Colleges of Higher Education (Höhere Fachschulen (HF); écoles supérieures (ES); scuole specializzate superiori (SSS))
  - Advanced Federal Diploma of Higher Education (Eidgenössisches Diplom; Diplôme fédéral; Diploma federale), awarded after an Advanced Federal Professional Examination (Höhere Fachprüfung; Examen professionnel fédéral supérieur; Esame professionale federale superiore), when awarded from 2014 onwards
  - Federal Diploma of Higher Education, General Foreman Timber Construction (Holzbau-Polierin mit eidgenössischem Fachausweis (F) / Holzbau-Polier mit eidgenössischem Fachausweis (M); Contremaître charpentière avec brevet fédéral (F) / Contremaître charpentier avec brevet fédéral (M); Capa carpentiera con attestato professionale federale (F) / Capo carpentiere con attestato professionale federale (M))
  - Federal Diploma of Higher Education, Chartered Specialist in Accounting and Financial Management (Fachfrau im Finanz- und Rechnungswesen mit eidgenössischem Fachausweis (F) / Fachmann im Finanz- und Rechnungswesen mit eidgenössischem Fachausweis (M); Spécialiste en finance et comptabilité avec

brevet fédéral; Specialista in finanza e contabilità con attestato professionale federale)

- if they are employed by an overseas service provider (not a self-employed independent professional) supplying one of the services listed in the first column of the table below, the qualification listed in the second column of the table:

Sector	Qualification required
Advertising and translation services	Relevant qualifications
Chef de cuisine services (provided under the CARIFORUM-UK Economic Partnership Agreement)	Advanced technical qualification
Entertainment services (excluding audio-visual services under the – CARIFORUM-UK Economic Partnership Agreement)	None required
Fashion and modelling	None required
Management consulting services and services related to management consulting (managers and senior consultants)	University degree (not a technical qualification of an equivalent level)
Technical testing and analysis services	University degree or a relevant technical qualification

GBM6.17. In addition to the qualifications listed above, any worker applying as a Service Supplier must also hold any professional qualifications or registrations required to provide the services under UK law, regulations or sectoral requirements.

Professional experience requirement for Service Suppliers under Option B

GBM6.18. A Service Supplier claiming points for skill level under Option B must have relevant professional experience in the sector in which they will supply services, as set out in the table below:

Type	Experience required
Chef de cuisine services supplied under the CARIFORUM-UK Economic Partnership Agreement	6 years' relevant experience at the level of chef de cuisine
Self-employed overseas service provider ('independent professional')	6 years' professional experience in the sector concerned
All other cases	3 years' professional experience in the sector concerned

ATAS requirement

GBM6.19. When you assign a CoS to a worker on any of the GMB routes, you must check and confirm whether the worker needs to apply for an Academic Approval Technology Scheme (ATAS) certificate from the Foreign, Commonwealth and Development Office before they can start (or continue) working for you.

GBM6.20. A GBM worker will need an ATAS certificate if all of the following are true:

- you are also licensed as a Student sponsor
- the worker is not an 'exempt national'
- you are sponsoring the worker in a 'relevant occupation code'
- the work involves research at PhD level or above in 'relevant subject area'

See Annex S1 of Part 2: Sponsor a worker for a definition of the terms 'exempt national', 'relevant occupation code' and 'relevant subject area'.

GBM6.21. If the worker needs an ATAS certificate, you should encourage them to apply for one as soon as possible, as they will need to include a copy of the certificate with their application for entry clearance or permission to stay. If they fail to do so, we will refuse their application and you may lose your sponsor licence (or licences).

GBM6.22. For further information on the ATAS requirement, and your responsibilities in relation to it, see under 'ATAS requirement' in section S7 of Part 2: Sponsor a worker.

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GBM7. Salary requirements for GBM workers

This section tells you about the salary requirements for workers sponsored on the Global Business Mobility routes, and your responsibilities if a sponsored worker takes unpaid leave or you reduce their salary.

Overview

GBM7.1. You must ensure any worker you sponsor on the Global Business Mobility (GBM) routes is paid in line with the salary rates set out in the Immigration Rules and in this guidance.

GBM7.2. Applicants on the Senior or Specialist Worker, Graduate Trainee route and UK Expansion Worker routes must meet both a 'general salary' requirement and a 'going rate' requirement. These rates have been set to make sure the resident labour market is not undercut. They will be reviewed and updated regularly to reflect the latest available salary data.

GBM7.3. Applicants on the Service Supplier route or Secondment Worker route do not have to meet a general salary or going rate requirement but must be paid in accordance with UK National Minimum Wage legislation.

GBM7.4. If the amount you intend to pay the worker is below these rates, we will refuse their application for entry clearance or permission to stay. If we grant permission but later find you are not paying the worker in line with these rates, we will consider cancelling the worker's leave and revoking your licence – for further information, see.

- Absence without pay or on reduced pay
- Salary otherwise reduced

GBM7.5. In addition to compliance visits, we will undertake regular checks with HMRC to ensure you are paying at least the salary you stated on the sponsored worker's Certificate of Sponsorship (CoS), in any sponsor note you have added to the CoS, or in any other notification of a change in salary.

How much you have to pay a GBM worker

GBM7.6. The table below sets out the minimum amount you must pay a GBM worker. Where reference is made to the 'going rate', this means the going rate for the occupation code in which the worker is being sponsored, as stated in Tables 2, 2b or 3 (whichever is relevant) of Appendix Skilled Occupations.

Route	Minimum salary
Senior or Specialist Worker UK Expansion Worker	Unless the transitional arrangement for Senior or Specialist Workers below applies, the worker's salary must equal or exceed both: • the general salary threshold of £52,500 per year • the full going rate for the job as stated in Table 2 or Table 2b Appendix Skilled Occupations
Graduate Trainee	The worker's salary must equal or exceed both: • the general salary threshold of £27,300 per year • the applicable going rate, which is: o 70% of the going rate for the job if the worker is being sponsored for a job in Table 2 or Table 2b of Appendix Skilled Occupations o the full going rate for the job if the worker is being sponsored for a job in Table 3 of Appendix Skilled Occupations
Service Supplier Secondment Worker	Salary must comply with UK National Minimum Wage legislation.

GBM7.7. The general salary thresholds and going rates are for gross annual salary packages. You must also ensure that you understand and follow the rules on calculation of salary set out in section GBM8.

Transitional general salary requirement for a Senior or Specialist Worker

GBM7.8. The applicant does not have to meet the general salary requirement if they meet all of the following:

- are applying for permission to stay (from within the UK)
- were previously granted permission as a Tier 2 (Intra-Company Transfer) Migrant under the rules in force before 6 April 2011, or as a Work Permit Holder under the rules in force before 27 November 2008
- since then have continuously had permission as a Senior or Specialist Worker (including any short period of overstaying that was disregarded under the 'Exceptions for overstayers' section in Part Suitability of the Immigration Rules)

GBM7.9. Applicants who benefit from this transitional arrangement must still be paid at least the full going rate for the relevant occupation code as stated in Table 2, 2b or 3 of Appendix Skilled Occupations.

PAYE reference numbers

GBM7.10. When you assign a CoS to a Senior or Specialist Worker, Graduate Trainee or UK Expansion Worker, you must tell us the Pay As You Earn (PAYE) scheme reference number through which the worker will pay income tax and national insurance. We will use this information to check with HMRC that you are paying the worker the amount you said you would. If you are not required to operate PAYE on the worker's earnings, or if you are a UK Expansion Worker sponsor and you have not yet been able to register for PAYE, you must explain this on the CoS.

GBM7.11. Before you assign any CoS, we recommend you first add any PAYE scheme reference numbers for your sponsored workers to your licence, using the 'PAYE References' tab in your sponsorship management system (SMS) account. You will then be able to select the relevant PAYE scheme when you assign a CoS to a sponsored worker.

GBM7.12. If the PAYE scheme through which a worker pays tax and national insurance changes, you do not need to report this to us in relation to the individual worker. You must, however, ensure that the new PAYE scheme is listed in your SMS account.

GBM7.13. For further information on managing PAYE reference numbers, see Guide 9 in SMS Manual 2: manage your sponsorship licence.

Absence without pay or on reduced pay

GBM7.14. You must normally stop sponsoring a worker if they are absent from work without pay, or absent on reduced pay, for more than 4 weeks in total according to their normal working pattern, during any calendar year (1 January to 31 December), unless the absences are due to any of the following:

- statutory maternity, paternity, parental, shared parental, adoption or neonatal care leave
- sick leave
- assisting with a national or international humanitarian or environmental crisis, with your agreement
- taking part in legally organised industrial action
- jury service
- attending court as a witness

See 'Absence without pay or on reduced pay' in section S4 of Part 2: Sponsor a worker for more information.

Salary otherwise reduced

GBM7.15. If the worker's salary is reduced for any reason not related to absence, their revised salary must continue to meet the minimum salary rate for

the route on which they are being sponsored. The only exceptions to this are if the reduction coincides with:

- a period where the worker is working outside the UK for the sponsor group or a linked overseas business
- a temporary reduction in the worker's hours, or a phased return to work, for individual health reasons, provided:
  - this is supported by an occupational health assessment; and
  - the reduction does not result in the hourly rate falling below any hourly rate requirement which applied when the worker obtained their most recent grant of permission

GBM7.16. You must always tell us if the worker's salary has been reduced for any reason (and what their revised salary is) via your SMS account. However, provided the requirements above are met, you do not need assign a new CoS and the worker does not need to make a new application for permission.

GBM7.17. If the worker's salary is reduced below the applicable minimum rate, and neither of the exceptions above apply, you must stop sponsoring the worker and tell us you have done so within 10 working days via your SMS account.

GBM7.18. Remember, we will make regular checks with HMRC to ensure you are paying the worker appropriately. If we find you are paying the worker less than the amount that would be eligible for points on the GBM routes, or the change is not otherwise permitted by the Immigration Rules or this guidance, we will revoke your licence.

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GBM8. Calculation of salary for GBM workers

This section tells you how we calculate whether a salary meets the general salary and going rate requirements for Global Business Mobility routes (where these thresholds apply), including the rules on allowances, pro-rating and accommodation.

This section applies to workers sponsored on the Senior or Specialist Worker route, the Graduate Trainee route, or the UK Expansion Worker route. If you are sponsoring a worker on the Service Supplier or Secondment Worker routes, you must ensure you pay them in line with UK National Minimum Wage legislation.

Permitted allowances for GBM workers

GBM8.1. When calculating the worker's salary, we will only take into account:

- guaranteed basic gross pay (before income tax and including employee pension and national insurance contributions); and
- allowances which are guaranteed to be paid for the duration of the worker's employment in the UK (such as London weighting) or are paid as a mobility premium or to cover the additional cost of living in the UK

GBM8.2. Where allowances are solely for the purpose of accommodation, they will only be taken into account up to a value of either:

- 30% of the total salary package, where the applicant is applying on the Senior or Specialist Worker route, or the UK Expansion Worker route
- 40% of the total salary package, where the applicant is applying on the Graduate Trainee route

See Calculation of accommodation allowances for further information.

Allowances you cannot include

GBM8.3. When entering the worker's salary on their CoS, you must not include, and we will not take into account, other pay and benefits, such as any of the following:

- flexible working where the nature of the job means that hours fluctuate and pay cannot be guaranteed
- additional pay such as shift, overtime or bonus pay, whether or not it is guaranteed
- employer pension and national insurance contributions
- any allowances, other than those identified as 'permitted allowances' above

- in-kind benefits, such as equity shares, health insurance, school or university fees
- company cars or food
- one-off payments, such as 'golden hellos'
- any payments relating to immigration costs, such as the fee or Immigration Health Charge
- payments to cover business expenses, including (but not limited to) travel to and from the applicant's country of residence, equipment, clothing, travel or subsistence

Calculation of general salary threshold for GBM workers

GBM8.4. To determine whether the worker is being paid at least the general salary threshold of £52,500 per year (for Senior or Specialist Workers or UK Expansion Workers) or £27,300 per year (for Graduate Trainees), we will only take into account earnings stated on the CoS up to a maximum of 48 hours a week, even if the worker works for longer than this. For example, a worker who works 60 hours a week for £18 per hour will be considered to have a salary of £44,928 (£18 x 48 x 52) and not £56,160 (£18 x 60 x 52) and will therefore not meet the general salary requirement for the Senior or Specialist Worker route or the UK Expansion Worker route.

GBM8.5. If the worker works part time, we will only consider their actual gross earnings to determine if they are being paid at least the general salary threshold – we will not pro-rate their salary to the equivalent full-time earnings. For example, if the worker works 20 hours per week for £35 per hour, their annual salary will be £36,400 (20 x 35 x 52) and they will not meet the general salary threshold for the Senior or Specialist Worker route or the UK Expansion Worker route. We will, however, pro-rate part-time earnings when determining whether the worker is being paid the going rate (see below).

Calculation of going rate for GBM workers

GBM8.6. When assessing whether the applicant is being paid the going rate for the job they are being sponsored for, we will take into account their full weekly working hours, as stated on their CoS, and pro-rate accordingly. This applies even if the applicant works more than 48 hours per week. The calculation we use depends on whether the occupation code is listed in Table 2, 2b or 3 of Appendix Skilled Occupations.

Occupation code in Table 2 or 2b

GBM8.7. Going rates for occupation codes listed in Tables 2 and 2b of Appendix Skilled Occupations are based on a 37.5-hour week.

GBM8.8. If the applicant is applying as Senior or Specialist Worker or a UK Expansion Worker, we will perform the following calculation:

1 x (the going rate for the occupation code stated in Table 2 or 2b of Appendix Skilled Occupations) multiplied by (the number of weekly working hours stated by you on the CoS ÷ 37.5)

GBM8.9. This means, for example:

- a Senior or Specialist Worker or a UK Expansion Worker who will work 60 hours a week in an occupation code in Table 2 with a going rate of £60,000 must be paid at least £96,000 (1 x £60,000 x 60 ÷ 37.5) per year to meet the going rate requirement
- a Senior or Specialist Worker or a UK Expansion Worker who will work 35 hours per week in an occupation code in Table 2 with a going rate of £60,000 must be paid at least £56,000 (1 x £60,000 x 35 ÷ 37.5) per year to meet the going rate requirement

GBM8.10. If the applicant is applying on the Graduate Trainee route, we will perform the following calculation:

0.7 x (the going rate for the occupation code stated in Table 2 or 2b of Appendix Skilled Occupations) multiplied by (the number of weekly working hours stated by you on the CoS ÷ 37.5)

GBM8.11. This means, for example:

- a Graduate Trainee who will work 60 hours per week in an occupation code in Table 2 with a going rate of £50,000 must be paid at least £56,000 (0.7 x £50,000 x 60 ÷ 37.5) per year to meet the going rate requirement
- a Graduate Trainee who will work 30 hours per week in an occupation code in Table 2 with a going rate of £50,000 must be paid at least £28,000 (0.7 x £50,000 x 30 ÷ 37.5) per year to meet the going rate requirement

Occupation code in Table 3

GBM8.12. If the applicant is being sponsored for a job in one of the health or education occupation codes listed in Table 3 of Appendix Skilled Occupations, they must be paid the full going rate. This applies to all GBM routes for which there is a going rate requirement. The going rate will be pro-rated according to the number of weekly working hours stated by you on the CoS and the rules set out in Tables 3, 4 or 5 of Appendix Skilled Occupations.

Calculation of salary: irregular working patterns

GBM8.13. The following rules apply where the applicant's working hours vary each week, resulting in uneven pay:

- work in excess of 48 hours in some weeks can be considered towards the general salary threshold, provided the average over a regular

cycle (which can be no more than 17 weeks) is not more than 48 hours a week
- any unpaid rest weeks will count towards the average when considering whether the salary thresholds are met
- any unpaid rest weeks will not count as absences from employment

GBM8.14. For example, an applicant who works a pattern of 60 hours a week for £28 per hour for two weeks, followed by an unpaid rest week, will be considered to work 40 hours a week on average and have a salary of £58,240 (£28 x 40 x 52) per year.

Calculation of accommodation allowances for GBM workers

GBM8.15. If you wish to pay the worker an accommodation allowance, how we calculate this depends on which route they are being sponsored on.

Accommodation allowance for Senior or Specialist Workers or UK Expansion Workers

GBM8.16. Accommodation allowances for these routes must not be more than 30% of the total salary package (including permitted allowances) on offer.

GBM8.17. Below are two examples of how we calculate accommodation allowances for these routes.

Example 1
The CoS gives the following salary information:

- salary and other (non-accommodation) permitted allowances: £42,000
- accommodation allowances: £14,000

Add these two figures together to get the total salary package offered = £56,000.

We work out the maximum package we can take into account by dividing the salary and other (non-accommodation) permitted allowances by 70% (0.7): £42,000 ÷ 0.7 = £60,000.

The total offered is less than the maximum package we can take into account. We will therefore take the entire package of £56,000 into account, which meets the general salary threshold requirement.

Example 2
The CoS gives the following salary information:

- salary and other (non-accommodation) permitted allowances: £35,000
- accommodation allowances: £21,000

Add these two figures together to get the total package offered = £56,000.

We work out the maximum package we can take into account by dividing the salary and other (non-accommodation) allowances by 70% (0.7): £35,000 ÷ 0.7 = £50,000.

The total offered is more than the maximum package we can take into account. We will therefore only take into account £50,000, which is below the general salary threshold for these routes. The application would therefore be refused.

Accommodation allowance for Graduate Trainees

GBM8.18. Due to higher costs for short-term accommodation, we will take account of accommodation allowances up to 40% of the gross salary in the Graduate Trainee route. This means the worker's salary and other (non-accommodation) permitted allowances must be at least 60% of the maximum package that we will take into account.

GBM8.19. Below is an example of how we calculate accommodation allowances in the Graduate Trainee route.

Example
The CoS gives the following salary information:

- salary and other (non-accommodation) permitted allowances: £18,000
- accommodation allowances: £10,000

Add these two figures together to get the total package offered = £28,000.

We work out the maximum package we can take into account by dividing the salary and other (non-accommodation) allowances by 60% (0.6): £18,000 ÷ 0.6 = £30,000.

The total package offered is less than the maximum package we can take into account. We will therefore take the entire package of £28,000 into account, which meets the Graduate Trainee general salary threshold.

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GBM9. Certificate of Sponsorship for GBM workers

This section tells you how to assign a valid Certificate of Sponsorship on the Global Business Mobility routes.

Overview

GBM9.1. If you have followed all the rules in this guidance and you wish to sponsor a worker on a Global Business Mobility (GBM) route, you must assign them a valid Certificate of Sponsorship (CoS), using your sponsorship management system (SMS) account.

GBM9.2. Before assigning a CoS, you should satisfy yourself that the worker can meet the relevant immigration requirements.

GBM9.3. You must be an A-rated sponsor for the route on which you are sponsoring the worker, unless one of the following exceptions applies:

- you are a B-rated sponsor, you sponsored the application which led to the worker's last grant of permission on the relevant route, and you are continuing to sponsor them on the same route
- you are sponsoring a UK Expansion Worker, the worker holds the role of Authorising Officer on your licence, and you have a Provisional rating for that route

GBM9.4. For information on who can be an Authorising Officer, see section L4 of Part 1: Apply for a licence and (for the UK Expansion Worker route) section GBM3 of this guidance. For information on sponsor ratings, see section L8 of Part 1: Apply for a licence.

GBM9.5. For detailed information on what a CoS is, and how many you can assign, see section S2 of Part 2: Sponsor a worker.

GBM9.6. You can find detailed technical guidance on how to assign a CoS in User manuals: sponsorship management system (SMS) – see in particular Manual 8.

Fees

GBM9.7. You must pay a fee for each CoS you assign – see UK visa fees on GOV.UK for information on current fee levels.

GBM9.8. For CoS assigned on or after 9 April 2025, you must not recoup, or attempt to recoup, by any means, any part of the CoS fee, or associated administrative costs, from any workers you sponsor. If we find you have done this, we will normally revoke your licence.

GBM9.9. Subject to certain exceptions, if you are sponsoring a Senior or Specialist Worker, you must also pay the Immigration Skills Charge for each worker you sponsor on that route. For further information, see section S5 of Part 2: sponsor a worker.

Use of the CoS

GBM9.10. Once you have assigned a CoS, the worker must use it within 3 months to apply for:

- entry clearance (a visa) if they are outside the UK
- permission to stay if they are in the UK and eligible to extend their permission or switch to the GBM routes

GBM9.11. If the CoS was issued more than 3 months before the date of application, we may reject their application and not consider it.

GBM9.12. The worker must not apply for a visa or permission to stay more than 3 months before the start date recorded on their CoS. If they do, we will refuse their application.

GBM9.13. We will also refuse the application if the CoS:

- has been withdrawn by you or cancelled by the Home Office – see section S6 of Part 2: Sponsor a worker for information on when a CoS can be withdrawn or cancelled
- was used in a previous application that was refused

What the CoS must confirm

GBM9.14. For a CoS to be valid, it must confirm all of the following:

- the GBM route on which you are sponsoring the worker
- if you are sponsoring a Senior or Specialist Worker, whether the Immigration Skills Charge applies – you do this by selecting the appropriate category from the drop-down list ('ISC liable' or 'ISC exempt'); if you choose 'ISC exempt', you must then give details of which ISC exemption applies
- the worker's personal information (such as name, date of birth, nationality), passport details and contact details
- the start and end date of their employment – see section S3 of Part 2: Sponsor a worker for guidance on entering start and end dates
- how many hours they will work each week – enter an average figure if this varies
- where the worker will carry out their employment – this should include their main work address and any other regular work addresses, if relevant

- whether you used an agent (such as a recruitment agency, employment business or other intermediary) to find the worker and, if so, details of that agent
- the job title
- the relevant SOC 2020 occupation code for the role (choose from the drop-down list under 'Job type') – see section S3 of Part 2: Sponsor a worker for more information on occupation codes
- the main duties of the role for which the worker is being sponsored (enter these in the 'Summary of job description' box)
- details of the worker's salary, including (where relevant) any permitted allowances
  - note: if you are sponsoring a Service Supplier, and you are not responsible for paying the worker's salary or fee, you can enter a nominal figure of £0.01 and provide information about their payment arrangements in the free text box below the salary box
- if you are sponsoring a Senior or Specialist Worker, Graduate Trainee or UK Expansion Worker, whether the job is on a client contract and details of that contract
- that the job is in an eligible occupation code or otherwise meets the skill level for the GBM routes
- where requested, that the worker has worked for an eligible linked business for the minimum required period
- where requested, professional registration details of the worker, if there is a legal requirement for them to be registered with a professional or other official organisation in the UK (for example, a doctor must be registered with the GMC)
- whether you wish to certify maintenance for the worker (and, if relevant, their dependants)
  - note: you can only do this if you're an A-rated sponsor (and not sponsoring a UK Expansion Worker)
- whether the worker needs an Academic Technology Approval Scheme (ATAS) certificate
- if the worker is a Senior or Specialist Worker, Graduate Trainee, or UK Expansion Worker, the PAYE scheme reference number through which the worker will pay income tax and national insurance – if you are not required to operate PAYE on the worker's earnings (for example, if the worker is covered by an exception set out in HMRC EP Appendix 4, or is self-employed), you must explain this on the CoS
- if you are sponsoring a Service Supplier or Secondment Worker, confirmation of which contract they will be working on – this must be a contract you've already registered with the Home Office and which we've confirmed is eligible for sponsorship

Reporting duties and record keeping

GBM9.15. Once you've assigned a CoS to a worker, you must tell us if they fail to start their employment, are absent without permission, or there are any significant changes to the nature of their work or salary, or to your organisation. For full details of your reporting and other duties, see: Part 3: Sponsor duties and compliance.

GBM9.16. You must also keep records for each worker you sponsor as specified in Appendix D to the sponsor guidance.

GBM9.17. If you fail to meet these duties, we may revoke your sponsor licence.

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